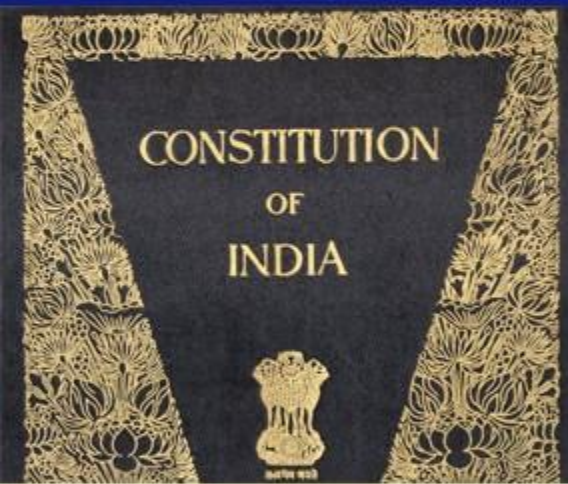


INDIAN POLITY



MODULE - 28

CITIZENSHIP

- **NRI, PIO & OCI**

WHO ARE NRIs, PIO AND OCI?

Non-Resident Indians (NRI), Person of Indian Origin (PIO) and Overseas Citizen of India (OCI) are the three major categories in which the people from India go and live abroad can be categorised.



WHO ARE NRIs, PIO AND OCI?

NON-RESIDENT INDIAN (NRI)



**PM interacting with Indian
Diaspora in Dublin**

- 1 Non-resident Indian, also referred as Indian Diaspora, are the people of Indian birth or descent who live outside of the Republic of India.
- 2 'Non-Resident Indian' is an individual who is a citizen of India or a person of Indian origin and who is not a resident of India.
- 3 Thus, in order to determine whether an individual is a non-resident Indian or not, his residential status is required to be determined under Section 6 of the Income-tax Act.

WHO ARE NRIs, PIO AND OCI?

NON-RESIDENT INDIAN (NRI)

- 4** An individual is said to be non-resident in India if he is not a resident in India and an individual is deemed to be resident in India in any previous year if he satisfies any of the following conditions:
- If he is in India for a **period of 182 days or more** during the previous year or
 - If he is in India for **a period of 60 days or more during the previous year and 365 days or more during four years immediately preceding the previous year.**

WHO ARE NRIs, PIO AND OCI?

PERSONS OF INDIAN ORIGIN (PIO)

- 1** The Persons of Indian Origin Card was a form of an identification card issued to the Person of Indian Origin who held a passport in a country other than Bangladesh, China, Afghanistan, Iran, Bhutan, Nepal, Pakistan and Sri Lanka.
- 2** The PIO Card programme came into effect from the year 2002.
- 3** Currently, the Person of Indian Origin card scheme **was withdrawn by the Government of India and it was merged with the Overseas Citizen of India (OCI) card scheme.**
- 4** Now all the PIO cards are treated as OCI cards. PIO card holders will get a special stamp on their existing PIO card, stating "lifelong validity" and "registration not required", thus making them equal to the existing OCI cards.

INDIAN POLITY

WHO ARE NRIs, PIO AND OCI?

PERSONS OF INDIAN ORIGIN (PIO)

HOW WILL MERGING HELP?

- 1** Merging PIO and OCI will lead to simplification of the rules under a single umbrella.
- 2** It would facilitate visa-free travel to India, rights of residency and participation in business and educational activities in the country.
- 3** This is aimed at simplifying the visa-free entry for people of Indian origin into India.
- 4** The merger of the two cards could make PIO cardholders eligible for benefits already enjoyed by OCI cardholders.
- 5** Merging of the two cards will also facilitate travel of Indians staying abroad and their participation in various activities in India.

INDIAN POLITY

WHO ARE NRIs, PIO AND OCI?

PERSONS OF INDIAN ORIGIN (PIO)

WHAT WAS THE ELIGIBILITY CONDITIONS PREVIOUSLY?

- 1 The Person of Indian Origin (PIO) are also called as Overseas Indians. They are individuals who are Indians at birth or descent of Indian origin who live outside of the Republic of India.
- 2 The Persons of Indian Origin means a foreign citizen (except a national of Pakistan, Afghanistan, Bangladesh, China, Bhutan, Sri Lanka, Iran and/or Nepal), who

 - At any time held an **Indian passport**.
 - Either of their **parents or grandparents or great-grandparents were born and permanently resident in India** as defined in Government of India Act, 1935 and other territories that became part of India thereafter provided neither was at any time a citizen of any of the aforesaid countries (as referred above).
 - Is a **spouse of a citizen of India or a PIO**.

WHO ARE NRIs, PIO AND OCI?

OVERSEAS CITIZEN OF INDIA (OCI)

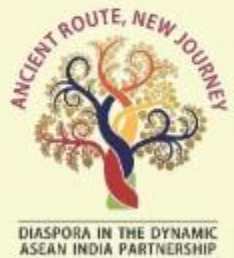


Pravasi Bharatiya Divas, 2006

- 1** In response to persistent demands for "dual citizenship" particularly from the Diaspora in North America and other developed countries and keeping in view the Government's deep commitment towards fulfilling the aspirations and expectations of Overseas Indians, the Overseas Citizenship of India (OCI) Scheme was introduced by amending the Citizenship Act, 1955 in August 2005.
- 2** The Scheme was launched during the Pravasi Bharatiya Divas convention 2006 at Hyderabad.

WHO ARE NRIs, PIO AND OCI?

OVERSEAS CITIZEN OF INDIA (OCI)



ASEAN INDIA
Pravasi Bharatiya Divas
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The Scheme provides for registration as Overseas Citizen of India (OCI) of all Persons of Indian Origin (PIOs) who were citizens of India on 26th January, 1950 or thereafter or were eligible to become citizens of India on 26th January, 1950 except who is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may, by notification in the Official Gazette, specify.

WHO ARE NRIs, PIO AND OCI?

OVERSEAS CITIZEN OF INDIA (OCI)



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- OCI is not to be misconstrued as 'dual citizenship'.
- OCI does not confer political rights. Also, the registered Overseas Citizens of India shall not be entitled to the rights conferred on a citizen of India under Article 16 of the Constitution with regard to equality of opportunity in matters of public employment.

5

In 2015 Indian Parliament passed a bill to amend the Citizenship Act 1955 to remove disparity between Persons of Indian Origin (PIO) and Overseas Citizens of India (OCI) cardholders.

WHO ARE NRIs, PIO AND OCI?

WHY MERGER OF PIO & OCI?

- 1** The PIO card Scheme was introduced on 19-08-2002 and thereafter the OCI card scheme was introduced w.e.f 01-12-2005
- 2** Both the schemes were running in parallel even though the OCI card scheme had become more popular.
- 3** This was causing unnecessary confusion in the minds of applicants.
- 4** Keeping in view some problems being faced by applicants and to provide enhanced facilities to them, the Government of India decided to formulate one single scheme after merging the PIO and OCI schemes.
- 5** OCI contains positive attributes of both. Hence, for achieving this objective, the Citizenship (Amendment) Act, 2015, was enacted.
- 6** The PIO scheme was rescinded w.e.f 09-01-2015 and it was also notified that all existing PIO cardholders shall be deemed to be OCI cardholders w.e.f 09-01-2015.
- 7** The Citizenship (Amendment) Act, 2015, replaced the nomenclature of "Overseas Citizen of India" with that of "Overseas Citizen of India Cardholder"

BENEFITS OF OCI CARDS

- 1** OCIs are entitled to a multipurpose, multiple entry, lifelong visa allowing them to visit India at any time, for any length of time and for any purpose
- 2** He/she is exempted from registration with Foreign Regional Registration Officer or Foreign Registration Officer for any length of stay in India,
- 3** Have also been granted all rights in the economic, financial and educational fields in parity with NRIs except, the right to acquisition of agricultural or plantation properties.
- 4** Apart from the benefits of PIO, the OCI can attain Indian citizenship and then live in India for a period of one year including short breaks, if they remain an OCI for 5 years.
- 5** An OCI card holder can open special bank accounts in India just like NRIs and make investments.
- 6** They can also buy non-farm property and exercise ownership rights.
- 7** They apply for a driver's license and PAN card.

DIFFERENCE BETWEEN PIO & OCI

PERSON OF INDIAN ORIGIN

- 1** Means a foreign citizen (except a national of Pakistan, Afghanistan, Bangladesh, China, Iran, Bhutan, Sri Lanka and Nepal)
- 2** A foreign citizen whose one of the parents/grandparents/ great grandparents was born and permanent resident of India
- 3** Who is spouse of citizen of India or a PIO

OVERSEAS CITIZEN OF INDIA

- 1** A foreign national who was eligible to become citizen of India on 26-01-1950 or was a citizen of India on or at any time after 26-01-1950 or belonged to a territory that became part of India after 15_08-1947 is eligible for registration as Overseas Citizen of India.
- 2** Minor children of such person are eligible for OCI. However, if the applicant had ever been a citizen of Pakistan or Bangladesh, he/she will not be eligible for OCI.

BENEFITS OF PIO vs OCI

A PERSON OF INDIAN ORIGIN

- 1 PIO Card holders **do not require visa to visit India for a period of 15 years** from the date of issue of the PIO card
- 2 They are exempted from registration at FRRO/FRO if their stay does not exceed 180 days. In case if it exceeds 180 days, they shall have to register with FRRO/FRO within next 30 days.
- 3 They enjoy parity with NRI in economic, financial & educational benefits except the right to acquisition of agricultural or plantation properties.

OVERSEAS CITIZEN OF INDIA

- 1 OCIs are entitled to a **multipurpose, multiple entry, lifelong visa** allowing them to visit India at any time, for any length of time and for any purpose
- 2 Exempted from police reporting for any length of stay in the country.
- 3 Have also been granted all rights in the economic, financial and educational fields in parity with NRIs except the right to acquisition of agricultural or plantation properties.

DRAWBACKS OF PIO vs OCI

DRAWBACKS OF PIO CARD

- 1** It does not provide voting rights to the holder. PIOs do not enjoy employment rights in Government of India services nor can they hold any constitutional office in the Government of India.
- 2** Prior permission is needed to undertake mountaineering expeditions or any such related research work in protected areas.

DRAWBACKS OF OCI CARD

- 1** An OCI card holder cannot vote, hold a Government office or purchase agricultural or farm land.
- 2** The person can also not run for public office/ government services/ constitutional posts.

CONFERMENT OF RIGHTS ON OVERSEAS CITIZEN OF INDIA CARDHOLDER

- 1 An Overseas Citizen of India Cardholder shall be entitled to such rights, as the Central Government may specify in this behalf.
- 2 An Overseas Citizen of India Cardholder shall not be entitled to the following rights (which are conferred on a citizen of India)
 1. He shall not be entitled to the right to equality of opportunity in matters of public employment.
 2. He shall not be eligible for election as President/ Vice-President
 3. He shall not be eligible for appointment as a Judge of the Supreme Court/High Court.
 4. He shall not be entitled for registration as a voter.

CONFERMENT OF RIGHTS ON OVERSEAS CITIZEN OF INDIA CARDHOLDER

- 2** An Overseas Citizen of India Cardholder shall not be entitled to the following rights (which are conferred on a citizen of India)
5. He shall not be eligible for being a member of the **House of the People or of the Council of States.**
 6. He shall not be eligible for being a member of the **State Legislative Assembly or the State's Legislative Council.**
 7. He shall not be eligible for **appointment to public services** and posts in connection with affairs of the Union or of any State except for appointment in such services and posts as the Central Government may specify.

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